

Amendment No. 1 to SB2452

Briggs
Signature of Sponsor

AMEND Senate Bill No. 2452*

House Bill No. 2341

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Section 57-4-102(31), is amended by adding the following as a new subdivision (F):

(F) "Premises," when:

(i) Referring to one (1) or more establishments licensed under this chapter that are located within a central business improvement district created under title 7, chapter 84, part 5, in a county having a metropolitan form of government with a population in excess of five hundred thousand (500,000), according to the 2020 federal census or any subsequent federal census, including the public rights-of-way and publicly owned property located within the premises as described and approved by a temporary special event zone ordinance;

includes the area described in subdivision (31)(F)(i);

(ii) Consumption of alcoholic beverages and beer on the premises as defined in this subdivision (31)(F) is authorized only:

(a) For the duration of an event approved by a temporary special event zone ordinance that is conducted within the premises as defined in this subdivision (31)(F) as described and approved by the temporary special event zone ordinance; and

(b) If such alcoholic beverages and beer are sold or served by such a licensed establishment in an event-designed to-go cup within the

premises described and approved by a temporary special event zone ordinance; provided, that a licensed establishment is not required to use an event-designed to-go cup for purposes of consumption on the premises of the licensed establishment; and

(iii) As used in this subdivision (31)(F):

(a) "Temporary special event zone ordinance" means an ordinance approved by the local governmental body with jurisdiction over the premises as defined in this subdivision (31)(F) that clearly defines the premises and licensees under this chapter for a special event zone where consumption on the premises is permitted; and

(b) "Event-designed to-go cup" is a cup that is designed by the organization named in the temporary special event zone ordinance and county permit application that is sold by an establishment licensed under this chapter within the premises approved and described by the temporary special event zone ordinance and that has affixed to such cup a sticker identifying the licensed establishment that sold the alcoholic beverage or beer;

SECTION 2. This act takes effect upon becoming a law, the public welfare requiring it.